

24STLC06939 24STLC06939

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-27

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Case Number: 24STLC06939 Hearing Date: August 27, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Kinecta Federal Credit Union's Motion for Attorney's Fees is denied.

Analysis:

Plaintiff Kinecta Federal Credit Union ("Plaintiff") brought this action for breach of contract against Defendant Fernando Ponce ("Defendant") on September 24, 2024. Defendant filed an Answer on November 14, 2024. The action came for trial on March 24, 2026, at which time the Court found in favor of Plaintiff. (Minute Order 03/24/26.) Two days later, Plaintiff filed a Memorandum of Costs. On April 10, 2026, the Court entered judgment and gave notice to both parties.

Plaintiff filed the instant Motion for Attorney's Fees on April 22, 2026. Defendant filed an opposition on June 24, 2026, and Plaintiff replied on June 26, 2026. The Motion initially came for hearing on July 9, 2026, at which time the Court ruled that it could not determine the lodestar from the evidence provided and continued the matter. (Minute Order, 07/09/26, pp. 3-4.) The Court ordered Plaintiff to file and serve a supplemental declaration that provides evidence in support of the lodestar for the attorney's fees award by July 30, 2026, and allowed Defendant to file and serve a supplemental opposition by August 13, 2026. (Ibid.) To date, however, no supplemental papers have been filed by either party.

Therefore, the Motion for Attorney's Fees is denied.

Moving Party to give notice.